

Clerk stamps date here when form is filed.

Use this form to serve a **person**, a **business**, or a **public entity**. To learn more about proof of service, read *What Is "Proof of Service"?*, Form SC-104B. To learn more about how to serve a business or entity, read *How to Serve a Business or Public Entity*, Form SC-104C.

To serve a **business**, you must serve **one** of the following people:

- Owner (for a sole proprietorship)
- Partner (for a partnership) or general partner (for a limited partnership)
- Any officer or general manager (corporation or association)
- Any person authorized for service by the business (corporation, association, general partnership, limited partnership)
- Any person authorized for service with the Secretary of State (corporation, association, limited liability company [LLC], limited liability partnership [LLP], limited partnership)

To serve a **public entity**, you must first file a claim with that entity, then serve **one** of the following people:

- Clerk (of a city or county)
- Chief officer or director (of a public agency)
- Any person authorized for service by the entity

1 a. If you are serving a **person**, write the person's name below:

Person being served

b. If you are serving a **business** or **entity**, write the name of the business or entity, the person authorized for service, and that person's job title:

Business or Agency Name

Person authorized for service

Job title

Person Authorized for Service

Job Title

2 Instructions to Server:

You must be at least 18 years old and **not be named in this case**. Follow these steps:

- Give a copy of all the documents checked in 3 to the person in 1, **or**
- Give a copy of all the documents checked in 3 to one of the following people:
 - a. A competent adult (at least 18) living with, and at the home of the person in 1, **or**
 - b. An adult (at least 18) who seems to be in charge at the usual workplace of the person in 1, **or**
 - c. An adult (at least 18) who seems to be in charge where the person in 1 usually receives mail (but not a U.S. Post Office box), if there is no known physical address for the person in 1.

and mail a copy of the documents left with one of the adults in a, b, or c above to the person in 1.

THEN

- Complete and sign this form, and
- Give or mail your completed form to the person who asked you to serve these court papers, **in time for the form to be filed with the court at least 5 days before the hearing.**

3 I served the person in 1 a copy of the documents checked below:

a. ☐ SC-100, Plaintiff's Claim and ORDER to Go to Small Claims Court

b. ☐ SC-120, Defendant's Claim and ORDER to Go to Small Claims Court

c. ☐ Order for examination (This form must be personally served. Check the form that was served):

Note: The court can issue a civil arrest warrant if the served party does not come to court only if the order for examination was personally served by a registered process server, sheriff, marshal, or someone appointed by the court.

(1) ☐ SC-134, Application and Order to Produce Statement of Assets and to Appear for Examination

(2) ☐ AT-138/EJ-125, Application and Order for Appearance and Examination

d. ☐ Other (specify):

Fill in court name and street address:

Superior Court of California, County of

Court name and street address

Fill in case number, case name, hearing date, day, time, and department below:

Case Number:

Case Name:

Case name

Hearing Date:

Time:

Dept.:



Case name: Case name

Case Number: _____

4 Fill out "a" or "b" below:

- a. ☐ **Personal Service:** I personally gave copies of the documents checked in (3) to the person in (1)

On (date): Date served At (time): Time served a.m. ☐ p.m.

At this address: Service address

City: City State: State Zip: Zip

- b. ☐ **Substituted Service:** I personally gave copies of the documents checked in (3) (a, b, or d) to (check one):

☐ A competent adult (at least 18) at the **home** of, and living with the person in (1), or

☐ An adult who seems to be in charge where the person in (1) usually **works**, or

☐ An adult who seems to be in charge where the person in (1) usually **receives mail**, or has a private post office box (not a U.S. Post Office box), if there is no known physical address for the person in (1).

I told that adult, "Please give these court papers to (name of person in (1))."

I did this on (date): Date substituted service At (time): Time a.m. ☐ p.m.

At this address: _____

City: _____ State: _____ Zip: _____

Name or description of the person I gave the papers to: _____

City

State

Zip

After serving the court papers, I put copies of the documents listed in (3) in an envelope, sealed the envelope, and put first-class prepaid postage on it. I addressed the envelope to the person in (1) at the address where I left the copies.

I mailed the envelope on (date): Mailing date from (city, state) City, state mailed from by leaving it (check one):

a. ☐ At a U.S. Postal Service mail drop, or

b. ☐ At an office or business mail drop where I know the mail is picked up every day and deposited with the U.S. Postal Service, or

c. ☐ With someone else I asked to mail the documents to the person in (1), and I have attached that person's completed Form SC-104A.

5 Server's Information

Name: _____ Phone: _____

Address: _____

City: _____ State: _____ Zip: _____

Fee for service: \$ _____

If you are a registered process server:

County of registration: _____ Registration number: _____

- 6** I declare under penalty of perjury under California state law that I am at least 18 years old and not named in this case and that the information above is true and correct.

Date: _____

Type or print server's name

Server signs here after serving